

Line 1

Case Name: *Georgii Kliukovkin v. uDevs Inc., et al.*

Case No.: 24CV433813

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant uDevs Inc. (“Defendant”) moves to strike portions of Plaintiff’s First Amended Complaint (“FAC”) under Code of Civil Procedure Sections 435 and 436(a), specifically:

- Paragraph 8 in its entirety (FAC at 2:28-3:2) (“At the time Exhibit A was entered into, Defendants knew that they would not perform their obligations thereunder, and that the representations set forth in Exhibit A with respect to their promise to do so were false and fraudulent.”); and
- Paragraph 9 in its entirety (FAC at 3:3-5) (“At the time Plaintiff entered into Exhibits A and B, he did not know that Defendants’ representations concerning their promises were false and fraudulent, and Plaintiff believed them to be true.”).

Notice of Motion to Strike (the “Motion to Strike”) at 2:1-10 (filed: Dec. 5, 2025).

The Motion to Strike is made on the grounds that paragraphs 8 and 9 of the FAC are irrelevant or are improperly alleged as part of Plaintiff’s First Cause of Action for Breach of Contract because (Defendant argues) they relate only to Plaintiff’s Second Cause of Action for Fraud (*rather* than Breach of Contract). *Id.* at 2:11-13.

The Motion to Strike came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

The FAC alleges that on April 9, 2020, the parties entered into a written Income Share Agreement (“the Agreement”) which was latter modified as Addendum No. 1 (“Addendum”). (FAC, ¶ 4; Exs. A, B.) Defendant agreed to assist Plaintiff in obtaining an O-1 Visa (“the Visa”) and Plaintiff agreed to pay a percentage of his future income to Defendant. (FAC, ¶ 5.)

On April 9, 2020, Plaintiff paid Defendant \$2,987 in accordance with the Agreement. (FAC, ¶ 6.) Defendant breached the contract by failing to assist Plaintiff obtaining the Visa. (FAC, ¶ 7.) After waiting four years, Plaintiff notified Defendant that he was rescinding the Agreement and Addendum due to Defendant’s non-performance. (FAC, ¶ 10.) Defendant refuses to restore Plaintiff with the \$2,987 payment. (*Ibid.*)

The FAC, filed on October 21, 2025, asserts these four Causes of Action:

- 1) First Cause of Action: Breach of Contract;
- 2) Second Cause of Action: Fraud;
- 3) Third Cause of Action: Common Count for Money Had and Received; and
- 4) Fourth Cause of Action: Declaratory Relief.

(FAC, ¶¶ 1-23).

On December 5, 2025, Defendant filed this Motion to Strike Paragraphs 8 and 9, which are pleaded within the First Cause of Action of the FAC. Plaintiff opposes the Motion to Strike.

II. Defendant's Motion to Strike

As noted above, Defendant moves to strike Paragraphs 8 and 9 of the FAC in their entirety on the grounds they are irrelevant or improperly alleged as part of Plaintiff's First Cause of Action for Breach of Contract when (Defendant argues) they only relate to Plaintiff's Second Cause of Action for Fraud.

These paragraphs allege:

Paragraph 8: "At the time [the Agreement] was entered into, Defendants knew that they would not perform their obligations thereunder, and that the representations set forth in [the Agreement] with respect to their promise to do so were false and fraudulent."

Paragraph 9: "At the time Plaintiff entered into [the Agreement and Addendum], he did not know that Defendants' representations concerning their promises were false and fraudulent, and Plaintiff believed them to be true."

(Motion to Strike at 2:1-10).

A. Legal Standard on Motion to Strike

A court may strike out any irrelevant, false, or improper matter asserted in a pleading or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a).) The grounds for a motion to strike must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) In ruling on a motion to strike, a court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Clauson v. Superior Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

B. Analysis of the Motion

In a nutshell, Defendant argues that Paragraphs 8 and 9 are improperly pleaded within the First Cause of Action for Breach of Contract because they ought to instead be pleaded within the Second Cause of Action for Fraud. (Memo. in Support of Motion to Strike at 1:11-12.)

The Court finds this Defendant's argument to be nonsense and utterly unsupported by precedent under California law. Plaintiff is the master of his own pleading—*not* Defendant—and the allegations that Plaintiff chose to put in Paragraphs 8 and 9 are neither irrelevant nor improper. While Defendant is free to strenuously disagree with them and challenge them throughout this litigation, Defendant is not entitled to have them struck from the pleadings now.

Defendant's belief that the allegations in Paragraphs 8 and 9 are "antithetical to the contract claim, which alleges a valid and binding contract" (*id.* at p. 1:12-15) is no reason to strike these allegations at the pleading stage. After all, Plaintiff alleges that Defendant *breached* the contract through its failure of performance, and the facts pleaded in Paragraphs 8 and 9 could be relevant to jury's determination of whether Defendant breached the contract or failed to perform. (*See Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 989-990 ["Tort damages have been permitted in contract cases where . . . the contract was fraudulently induced. . . . [W]hen one party commits a fraud during the contract formation or performance, the injured party may recover in contract and tort."][internal citations and quotations omitted].) Again, Defendant will have the full and fair opportunity throughout this litigation to challenge and rebut those allegations, but Defendant is not entitled to have them struck just because Defendant muses that they are "antithetical."

In his Opposition papers, Plaintiff points out that California law recognizes that fraudulent inducement is a viable theory even in the context of a contract (Opposition at p. 3:6-10). And so it is quite proper for Paragraphs 8 and 9 to allege facts that Defendant induced Plaintiff to enter the contract by making misrepresentations regarding intent to perform and then breached the very contract that Defendant induced Plaintiff to enter. (*id.* at p. 3:12-16). The Court agrees with Plaintiff's reading of California law on this point. So there is nothing *improper* about this pleading.

Moreover, Plaintiff can properly *plead* alternative and even inconsistent theories at the pleading stage (Opposition at p. 4:5-7). While Defendant may not like that, such pleading in the alternative is not improper.

Likewise, the allegations in the First Cause of Action for Breach of Contract are (again, quite properly) incorporated by reference into the Second Cause of Action for Fraud. (FAC, ¶ 11; *see also Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 ["An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract. . . . In such cases, the plaintiff's claim does not depend upon whether the defendant's promise is ultimately enforceable as a contract. 'If it is enforceable, the plaintiff has a cause of action in tort as an alternative at least, and

perhaps in some instances in addition to his cause of action on the contract.”].) This is common practice. (See *Signal Hill Aviation Co. v. Stroppe* (1979) 96 Cal.App.3d 627, 638-639.) Again, Plaintiff is correct that modern practice allows a party to plead in the alternative and make inconsistent allegations. (See *Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.)

As for Defendant’s last-ditch argument to strike these portions of the FAC because (Defendant muses) it might be unable to win its anticipated Summary Adjudication Motion on the First Cause of Action for Breach of Contract because of Paragraphs 8 and 9 (Memo. in Support of Motion to Strike at pp. 4-5), the Court finds that argument to be as unconvincing as it is unfounded as a ground to strike a pleading. As Defendant’s counsel well knows, to prevail on a motion for summary adjudication Defendant need only show that “one or more of the elements of the cause of action” cannot be established *by evidence*. (*Maria D. v. Westec Residential Sec.* (2000) 85 Cal.App.4th 125, 133.) And that does not hinge on what Plaintiff *pleaded* in Paragraphs 8 or 9 of the FAC. So the Court rejects Defendant’s sheer speculation—about what Defendant might or might not be able to achieve on its anticipated Motion for Summary Adjudication—as a ground to strike Paragraphs 8 and 9 of the FAC now.

For all the above reasons, in the broad exercise of its discretion, the Court respectfully *declines* to strike Paragraphs 8 and 9 from the FAC. (See *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683 [motion to strike should be used cautiously and sparingly].)

Conclusion & Order

Accordingly, Defendant’s Motion to Strike Paragraphs 8 and 9 from the FAC is **DENIED.**

SO ORDERED.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Chad Hutson v. Sam Anderson*

Case No.: 24CV444270

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Sam Anderson (“Defendant” or “Mr. Anderson”) moves under Code of Civil Procedure Section 437c for Summary Judgment or, in the alternative, Summary Adjudication on all claims alleged in the Complaint of Plaintiff Chad Hutson (“Plaintiff”) on the grounds that there are no triable issues of material fact, and Plaintiff cannot establish any of the essential elements of his claims. Notice of Motion (the “Motion”) at p. 2.¹ (filed: Feb 4, 2026).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to Plaintiff’s Complaint, on January 29, 2024, Chad Hutson was assaulted and battered near West Valley Elementary School on his way to his home. Mr. Hutson pulled up his motorcycle behind Mr. Anderson’s BMW, which was stopped in front of a crosswalk blocking the road and traffic. Mr. Hutson honked the horn, but Mr. Anderson did not move his car. Mr. Hutson maneuvered his motorcycle around the BMW and proceeded toward his home. (Complaint ¶ 5)

Mr. Anderson followed Mr. Hutson aggressively. At the intersection of Dalles and Belleville, Mr. Anderson stopped his car, approached Mr. Hutson’s motorcycle, grabbed the handlebars, and began shaking it. Suddenly Mr. Anderson swung at Mr. Hutson connecting with his helmet, kicked him several times, and continued to attack him while on the ground. Mr. Hutson was held down by Mr. Anderson and another driver until police arrived. (Complaint ¶ 5)

Plaintiff initiated this action by filing Plaintiff’s Complaint on July 31, 2024, alleging only two causes of action for:

¹ As this Motion was not filed on pleading papers with line numbers, the Court in this Order cites only to page numbers.